Kunpeng HPCKit Project Corporate Contributor License Agreement

Thank you for participating in the Kunpeng HPCKit project ("this Project") incubated and hosted by Huawei Technologies Co., Ltd. ("Huawei" or "Us"). Huawei is the legal entity that signs this Agreement with You on behalf of this Project. By signing this Agreement, You agree to and are bound by this Agreement.

To clarify the intellectual property license granted by any entity in respect of "contributions", each contributor to this Project shall sign the Kunpeng HPCKit Project Corporate Contributor License Agreement ("this Agreement") and submit it to Us for archiving, indicating that the contributor agrees to the following terms: This Agreement protects You as a contributor and also protects this Project and its users.

This Agreement is intended for corporate contributors submitting "Contributions" to this Project. A corporate contributor which signs this Agreement shall authorize its designated personnel (such as its employees or other personnel who have signed contracts with it and are bound by it) to submit "Contributions" to this Project. You need to guarantee that the aforementioned personnel have the right to submit "Contributions" to this Project on Your behalf.

Please read the content carefully before filling in and signing this Agreement. You can keep a copy of this Agreement.

1. **Definition**

   "The Project" refers to the Kunpeng HPCKit project incubated and hosted by Us, accessible through the code repository listed in Appendix A (or any updated address as notified in writing by Us), or the source code of the Kunpeng HPCKit project otherwise provided to You by Us (e.g., via email or other means).

   "Works of this Project" refer to computer programs and accompanying documents released by Us in the code repository of this Project, including any updates and upgrades of them.

   "Contributor" or "You" refers to the organization or legal entity that signs this Agreement and voluntarily submit "Contributions" to this Project.

   "Contributions" refer to the code, documents, reports, and other documents submitted by You to be combined, incorporated into the Works of this Project, as well as other modifications and suggestions for modification made by You, including the aforementioned items which You have the right to authorize.

   "Submission" refers to delivery in the form of electronic, oral, or written communication to the designated address or a representative of this Project, including but not limited to communications and exchanges on e-mail lists, source code control systems, and issue tracking systems managed by this Project or its representatives for the purpose of discussing and improving the Works of this Project, excluding the content marked explicitly or in other forms of writing as "non-contribution" by You.

2. **License Granting**

   Subject to the terms and conditions of this Agreement, You hereby grant Us a perpetual, worldwide, no charge, royalty-free, sublicensable, and irrevocable license to exercise the following rights:

1. Copy, use, modify, distribute, run, and display Your Contributions;
2. Use or entrust a third party to use Your Contributions to produce Derivative Works under this Project;
3. Select an appropriate open source license for Your Contributions or Derivative Works that have incorporated Your Contributions and release them;
4. Independently on behalf of this Project initiate legal proceedings or take other legal actions for rights protection to Your Contributions or any Derivative works incorporating Your Contributions.

3. **Grant of Patent Rights**

   Subject to the terms and conditions of this Agreement, You hereby grant Us a perpetual, worldwide, non-exclusive, no charge, royalty-free, irrevocable, and sublicensable patent license to make, have made, use, offer to sell, sell, import, and otherwise transfer Your Contributions and Derivative Works that have incorporated Your Contributions or any part thereof. The aforementioned patent license is limited to those patents You now or hereafter own or control, to the extent that such patents would be infringed by your "Contribution" or any part thereof or by its combination with the Works of this Project. If any third party initiates a patent litigation (including cross-litigation or counterclaim) or other patent rights enforcement actions against You or other entities, alleging infringement of the patents of such third party by Your Contributions or the aforementioned combination, the patent license granted by You to the third party in accordance with this Agreement shall terminate as of the date when the third party initiates the patent litigation or otherwise enforces its patents.

4. **Contributor Obligations**

   1. If You intend to submit a work with any part that is not Your original work, You shall distinguish such a part or parts from Your Contribution before submitting the work to this Project. You shall identify to Your best efforts the source of such a part or parts and the full details of any existing restrictions (including but not limited to restrictions on intellectual property rights such as copyrights, trademarks, and patents), and indicate in a prominent manner that the work is "submitted on behalf of a third party" and the name of the third party.
   2. When You find that the submitted Contributions have major errors or incomplete information, You shall notify a project representative as soon as possible. Unless You wish to, You do not need to provide support services for Your Contributions. You can provide support services free of charge or for a fee, or do not provide support services at all.

5. **Representations and Warranties**

   1. You undertake and warrant that You have the right to license as specified in Section 2 and 3 of this Agreement. You further promise that each employee or individual contributor You designate through this Project has the right to submit Contributions on Your behalf.
   2. You promise and warrant that Your Contributions are Your original works, or that You have obtained relevant authorization to contribute to this Project under this Agreement, and that Your Contributions do not include illegal content.

6. **Disclaimers**

   This Project and Us make no express or implied warranties of any kind regarding the Works of this Project and the Contributions of Contributors, including but not limited to any warranties of FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, MERCHANTABILITY or SATISFACTORY QUALITY.

7. **Liabilities for Breach**

   In the event that a contributor breaches this Agreement, the contributor shall immediately take remedial measures and correct the breach within 30 days. If the breach is not corrected within the specified period, Huawei reserves the right to require the contributor to bear all losses incurred to Us.

8. **Amendments**

   The version and amendments of this Agreement shall be determined by Us. By continuing to provide Contributions to this Project, contributors are deemed to have accepted the latest terms of this Agreement.

9. **Applicable Laws and Dispute Resolution**

   This Agreement shall be governed by the laws of the People's Republic of China in terms of its establishment, validity, interpretation, modifications, enforcement, and dispute resolution. Any dispute arising out of or in connection with this Agreement shall be resolved through amicable negotiation between the two parties. If such negotiation fails, either party may submit the dispute to the competent People's Court at the location of the defendant for litigation.

Appendix A: Address of the Kunpeng HPCKit Project

[1]. https://atomgit.com/kunpengcompute/SIC-community